

CHICKASAW TRIBAL LEGISLATURE

PASSED

**Permanent Resolution Number 17-006
Amendments to Title 8, Chapter 2
of the Code of the Chickasaw Nation
(Candidates, Filing and Advertising)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has reviewed Title 8 of the Code of the Chickasaw Nation and finds the need to amend sections of Chapter 2.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby amends Title 8, Chapter 2, with deletions shown as stricken and additions shown in shading below. Other parts of Chapter 2 are to remain the same and are unaffected by this resolution.

SECTION 8-204 FILING FEE.

B. The Election Secretary/Tribal Registrar shall have each candidate who files for office sign a statement that there shall be no return of their filing fee once the candidate is deemed eligible. If a candidate is found to have provided inaccurate information on the Declaration of Candidacy and is later deemed ineligible, the filing fees will not be returned. Such fees are used to help defray the expenses that are incurred in conducting the elections. A report detailing fees and costs will be given to the Executive and Legislative Departments within 30 days of the conclusion of the election process.

SECTION 8-208 INSPECTION OF VOTERS LISTS.

A. Qualified candidates shall receive a computer printout of the voters list for the district or districts for which they are a candidate. Such list shall contain, only, each voter's name, address and zip code, and shall be available on the Wednesday following the date that the filing period for candidates officially closes. At that time, the candidates may compare their lists to the master list of their voters for accuracy. All qualified candidates receiving such list shall, on the ~~Thursday after voter registration closes~~ second Monday in July, receive a list of the qualified voters who were added up to the time registration closed. There shall be no additional charge for the updated list. Candidates whose eligibility has been challenged shall receive their voter list after the Chickasaw Election Commission has affirmed their eligibility. In lieu of the printout voters list, at the option of the candidate, he may select the option of having the list (s) of registered voters provided in a

March 17, 2000

computer diskette format. In such instances where that option is selected by a candidate, the same provisions shall apply for an updated diskette being provided once voter registration has closed. Should this option be selected by a candidate, that selection must be indicated in a formal written request provided to the Election Secretary/Tribal Registrar during the time frame allowed for filing of the Declaration of Candidacy form. All such diskettes shall be formatted for operation in IBM compatible computers and software using Windows 3.1 or Windows 95 or current software. ~~All such diskettes shall be returned to the Chickasaw Election Commission by each candidate no later than three (3) days after the election results have been certified and posted.~~

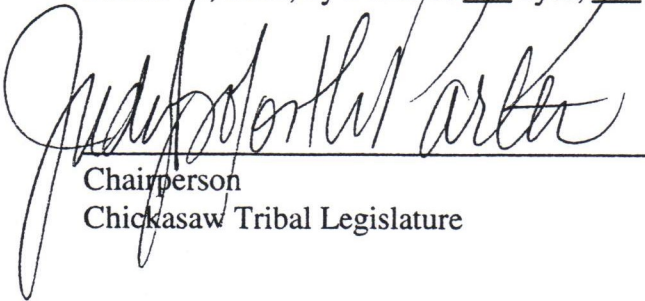
SECTION 8-2H210 RESERVED ACTIVITIES REPORT (VOTERS IN PREVIOUS ELECTION).

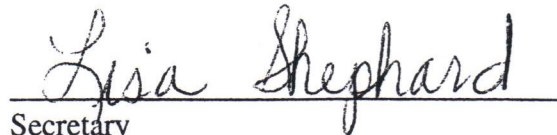
All candidates and elected officials may, upon written request, receive this report for their respective district(s), from the Election Secretary/Tribal Registrar.

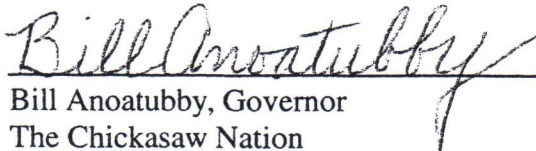
SECTION 8-2H211 USE OF VOTER LISTS.

Voter lists and activities reports may not be used for commercial purposes. ~~and a A statement to this effect must be signed prior to issuance of a voter's list or activities reports. Voters lists and activities reports may not be used for commercial purposes. A statement to this effect must be signed prior to issuance of a voter's list or activities report.~~ These lists are for the exclusive use of candidate and elected officials.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on March 17, 2000, by a vote of 9 ayes, 3 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAR 17 2000

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Explanation: This resolution amends Title 8, Chapter 2 of the Code of the Chickasaw Nation. Deletions are shown in strike out and additions are shown in shading. Language was added to help promote clarity and to further justify the text's meaning.

Requested By: Bill Anoatubby, Governor
The Chickasaw Nation

Presented By: Linda Briggs, Chairman
Legislative Committee